

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

BRIAN JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER RENE
CALZADA, Tax # 941487, and POLICE OFFICERS
JOHN DOES #1-4 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.

SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 7, 2015

Yours, etc.


JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690TO: City of New York, 100 Church Street, NY, NY 10007
Defendant Police Officer Rene Calzada, Tax # 941487, 42nd Precinct, 830 Washington
Ave., Bronx, New York, 10451

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COUNTY OF BRONX

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, BRIAN JOHNSON, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 12, 2013, at approximately 11:00 a.m., plaintiff, Brian Johnson, while lawfully present in the vicinity of 169th Street and Washington Avenue, Bronx, New York, was subject to an unlawful stop, frisk, search, detention, false imprisonment, and malicious prosecution. Moreover, the New York City Police Officers subjected plaintiff to an assault and battery, and excessive force when they, amongst other things, threatened to shoot plaintiff with a taser gun and violently and forcefully dragged claimant out of a police car by the handcuffs and slammed him to the pavement numerous times without cause or legal justification, causing plaintiff to injure his back, hands, and wrists. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined plaintiff, caused the unjustifiable arrest and malicious prosecution of plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Brian Johnson is a resident of Bronx, New York.
3. Police Officer Calzada, Tax # 941487, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. On the date of the subject incident, Police Officer Calzada, Tax # 941487 was assigned to the 42nd Precinct.
5. Police Officer Calzada, Tax # 941487 is being sued in his individual and official capacity.
6. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. Police Officers John Does #1-4 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On October 12, 2013, plaintiff was lawfully standing near his apartment building, in the vicinity of 169th Street and Washington Avenue, when he observed a female NYPD sergeant giving his friend a ticket.

16. Plaintiff lawfully crossed the street to approach his friend in order to inquire why the sergeant was ticketing her.

17. However, a police officer ordered claimant to leave the immediate area where the woman being ticketed was standing.

18. Plaintiff complied with the officers' order and walked across the street, back to where he originally stood when he first observed his friend being ticketed.

19. Nevertheless, approximately 15 minutes later, the sergeant who ticketed plaintiff's friend approached plaintiff and ordered him to place his hands behind his back.

20. Plaintiff inquired why he was being arrested and in response to his question, the sergeant pointed a taser gun at plaintiff and threatened to shoot him.

21. The sergeant did not tell plaintiff why he was being arrested.

22. Rather, the sergeant proceeded to criticize plaintiff's friend whom the sergeant ticketed for dating an "African American" man, implying it was beneath her to date plaintiff.

23. At no time did plaintiff commit a crime or behave in a manner that would give the defendant police officers reasonable suspicion, probable cause, or any objectively reasonable basis to believe plaintiff committed or was about to commit a crime.

24. Nevertheless, the defendant police officers unlawfully stopped, questioned, frisked, and searched plaintiff without reasonable suspicion, probable cause, or legal justification.

25. Notably, at no time during the search of plaintiff did the defendant police officers recover any weapons, drugs, or contraband from plaintiff.

26. The officers then unlawfully placed plaintiff in handcuffs without probable cause or legal justification and forcefully pushed him into a cramped vehicle.

27. When the police vehicle arrived at the 42nd Precinct stationhouse, plaintiff was assaulted and battered when the individually named defendant police officers violently and forcefully dragged plaintiff out of the car by the handcuffs.

28. The officer then slammed claimant to the pavement twice in a violent manner, without cause or legal justification, causing pain and injury to plaintiff's hand, back, and wrists.

29. Moreover, the screen to plaintiff's phone was broken during the course of the incident.

30. The defendant police officers refused to tell plaintiff why they were attacking him and arresting him.

31. Thereafter, plaintiff was unlawfully detained by the officers in a holding cell for approximately 7 hours before he was finally released and given a summons for Disorderly Conduct.

32. The summons directed plaintiff to appear in Court on or about December 27, 2013, and defendant Police Officer Calzada, Tax # 941487, signed the summons, which contained false allegations that were untrue and fabricated by defendants.

33. Thereafter, the summons was dismissed in its entirety on May 6, 2014, after plaintiff was maliciously prosecuted for approximately five months.

34. On October 12, 2013, after plaintiff was released from the 42nd Precinct stationhouse, he immediately went to Lincoln Hospital Center to obtain treatment for his injuries.

35. The individually named police officer and sergeant defendants used excessive force against plaintiff and assaulted and battered plaintiff, causing injuries, aching, pain, sprains, and strain to plaintiff's body.

36. Plaintiff complied with every order made by police officers throughout the course of the incident and did not resist the officers in any way.

37. Defendants intentionally, recklessly, or negligently handcuffed plaintiff in a manner that a reasonable police officer should have known was dangerously tight.

38. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, and malicious prosecution of plaintiff.

39. A notice of claim was timely served on the Comptroller of the City of New York and at least thirty days have elapsed since the service of such notice and adjustment and/or payment has been neglected and/or refused.

40. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, assault and battery of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stop, questions, frisked, seized, unlawfully search, and falsely arrested and imprisoned plaintiff, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

43. The individually named police officer defendants while acting in concert and within the scope of their authority, damaged plaintiff's motor vehicle in violation of the Fourth Amendment.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search plaintiff.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FIFTH CAUSE OF ACTION

Failure to Intervene

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

59. Defendants failed to intervene to prevent the unlawful conduct described herein.

60. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligence

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. Defendants owed a duty of care to plaintiff.

65. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, and maliciously prosecuting plaintiff.

66. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

67. All of the foregoing occurred without any fault or provocation by plaintiff.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Brian Johnson. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

71. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Unlawful Stop

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The conduct of defendants in stopping and frisking plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

77. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State law.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Malicious Prosecution

80. Plaintiffs repeat and reallege paragraphs 1 through 79 as if fully set forth herein.

81. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

82. Defendants commenced and continued a criminal proceeding against plaintiff.

83. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

84. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

85. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

86. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Assault

88. Plaintiff repeats and realleges paragraphs 1 through 87 as if fully set forth herein.

89. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

90. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Battery

92. Plaintiff repeats and realleges paragraphs 1 through 91 as if fully set forth herein.

93. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

94. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

95. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

TWELFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The use of excessive force by defendants by dragging him out of a police vehicle by his handcuffs and throwing plaintiff to the ground was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

98. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

THIRTEENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

99. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

100. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

101. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon on their person, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

102. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

103. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

104. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

105. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

106. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

107. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Brian Johnson demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
January 7, 2015

By: _____

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TO: City of New York, 100 Church Street, NY, NY 10007
Defendant Police Officer Calzada, Tax # 941487

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 7, 2015



STUART E. JACOBS, ESQ.